



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

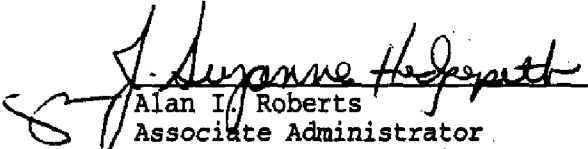
DOT-E 10706 (EXTENSION)
SECOND REVISION September 8, 1994

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10706 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1997. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

OCT 10 1995

(DATE)


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Energy & Environmental Technology Company (EETCO)
Southfield, MI

September 26, 1995



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SEP 8 1994

DOT-E 10706
(SECOND REVISION)

1. Energy & Environmental Technology Company (EETCO), Southfield, Michigan, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer the packages prescribed herein of waste Class 3 material for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes shipments of Class 3 materials in non-DOT specification packagings, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on EETCO's application dated May 6, 1994 submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). A waste mixture containing gasoline, benzene, and polystyrene, classed as Class 3 (This material meets the criteria of Packing Group II).

4. PROPER SHIPPING NAME (49 CFR 172.101). Waste flammable liquid, n.o.s.

5. REGULATION AFFECTED. 49 CFR 173.202.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a cylindrical steel packaging with a removable end which is bolted on for closure. The packagings are identified as US Missile Containers MK 25, Model 0 and US Missile Containers MK 27 Model 0, and have been hydrostatically or pneumatically tested for leak tightness as described in the petitioner's application. Aluminum canisters of Class 3 material must be placed into the missile containers with absorbent material filling the void space at the bottom of the overpack. Only one canister may be shipped within each missile container. The completed packaging must be securely strapped horizontally to a covered vehicle for transportation to a disposal site.

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8. SPECIAL PROVISIONS.

a. This exemption authorizes shipments of waste Class 3 material from the U.S. Navy site at Fallbrook, California, destined to any EPA approved hazardous waste disposal facility approved to accept the material for disposal.

b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

10. EXPIRATION DATE. September 30, 1995, or upon completion of the shipment of all leaking canisters, whichever occurs first.

Issued at Washington, DC:


Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

SEP 8 1994

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Washington, DC, 20590. Attention: Exemptions Program.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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